



DELHI POLICE

STANDING ORDER NO. 68/2017

DUTIES OF THE POLICE UNDER THE JUVENILE JUSTICE ACT, 2015 AND DELHI JUVENILE JUSTICE MODEL RULES - 2016

I. INTRODUCTION

1. The purpose of this Standing Order is to spell out the responsibilities of the police station staff and other units investigating cases under the Juvenile Justice (Care and Protection of Children) Act, 2015 and Delhi Juvenile Justice (Care and Protection of Children) Model Rules, 2016.
2. The Juvenile Justice (Care and Protection of Children) Act, 2015, as amended, has been enacted relating to children alleged and found to be in conflict with law and children in need of care and protection by catering to their basic needs through proper care, protection, treatment, development and rehabilitation by adopting a child-friendly approach in the adjudication and disposal of matters relating to children in the best interest of children, for their rehabilitation through various institutions established under the enactment. The Act also deals with adoption of children and lays down eligibility criteria for adoptive parents.
3. The criminal justice system, as applicable to adults, is not considered suitable for juveniles. The Juvenile Justice (Care and Protection of Children) Act has been enacted, taking into consideration the standards prescribed in the Convention of the Rights of the Child, the United Nations Standard Minimum Rules for the Administration of Juvenile Justice, 1985 (The Beijing Rules), resulting in creation of various institutions such as Children Homes, Observation Homes, Special Homes and After-Care Organizations to give adequate care and proper protection to the children.
4. The Juvenile Justice (Care and Protection of Children) Model Rules, 2016 have been framed and published in the Part IV of Gazette of Delhi - Extraordinary, vide F. No. 61(937)/JJ Act/DD(CPU)/DWCD/2016/9431-56 dated 05.07.2017 as provided under sub-section (1) of Section 110 of Juvenile Justice (Care and Protection of Children) Act, 2015.

II. SALIENT FEATURES OF THE ACT

The Juvenile Justice (Care and Protection of Children) 2015 lays down a uniform legal framework for juvenile justice in the country for ensuring that no child, under any circumstance, is lodged in a jail or in a police lock-up. This is being implemented by establishing Juvenile Justice Boards. This Act provides procedure for trial of children and for the adjudication of certain matters relating to and disposition of children in conflict with law and children in need of care & protection.

1. Child or Juvenile

As defined under sub-section (12) & (35) of Section 2 of the Juvenile Justice (Care and Protection of Children) Act, 2015, child or juvenile means a person who has not completed eighteen years of age.

2. Children in conflict with law

- a. The term "children in conflict with law" has been defined under sub-section (13) of section 2 of the aforesaid Act as a child who is alleged or found to have committed an offence and has not completed eighteen years of age as on the date of commission of such offence.
- b. Child offenders are to be treated differently from hardened criminals. The way a child in conflict with law is dealt by the police can sometimes determine whether the child would grow up as a normal citizen or turn into a hardened criminal. The police officer handling a child in conflict with law must give the child the impression of a sincere friend and should try to reform him rather than, as a policeman, try to punish him. The child in conflict with law shall be handed over to Child Welfare Police Officer as early as possible. Even when a child is to be taken into custody, unnecessary humiliation or restraint must be avoided. No such child should be handcuffed or fettered. The officers/men while handling/escorting a child shall not wear police uniform.

3. Child in need of care and protection

Child in need of care and protection means a child -

- a. Who is found without any home or settled place of abode and without any ostensible means of subsistence; or
- b. Who is found working in contravention of labour laws for the time being in force or is found begging, or living on the street; or
- c. Who resides with a person (whether a guardian of the child or not) and such person:-
 - i. Has injured, exploited, abused or neglected the child or has violated any other law for the time being in force meant for the protection of child; or

- ii. Has threatened to kill, injure, exploit or abuse the child and there is a reasonable likelihood of the threat being carried out; or
- iii. has killed, abused, neglected or exploited some other child or children and there is a reasonable likelihood of the child in question being killed, abused, exploited or neglected by that person; or
- d. who is mentally ill or mentally or physically challenged or suffering from terminal or incurable disease, having no one to support or look after or having parents or guardians unfit to take care, if found so by the Board or the Committee; or
- e. who has a parent or guardian and such parent or guardian is found to be unfit or incapacitated, by the Committee or the Board, to care for and protect the safety and well-being of the child; or
- f. who does not have parents and no one is willing to take care of, or whose parents have abandoned or surrendered him; or
- g. who is missing or run away child, or whose parents cannot be found after making reasonable inquiry in such manner as may be prescribed; or
- h. who has been or is being or is likely to be abused, tortured or exploited for the purpose of sexual abuse or illegal acts; or
- i. Who is found vulnerable and is likely to be inducted into drug abuse or trafficking; or
- j. Who is being or is likely to be abused for unconscionable gains; or
- k. Who is victim of or affected by any armed conflict, civil unrest or natural calamity; or
- l. Who is at imminent risk of marriage before attaining the age of marriage and whose parents, family members, guardian and any other persons are likely to be responsible for solemnization of such marriage;
- m. Whenever child in need of care and protection is found in the jurisdiction of any police station, the police shall produce the child before the Child Welfare Committee and send him to Children Home as ordered by the Child Welfare Committee.

4. Juvenile Justice Board

- a. To adjudicate matters pertaining to juveniles in conflict with law, JJBs have been constituted. A JJB shall consist of a Metropolitan Magistrate or a Judicial Magistrate of the first class, as the case may be, and two social workers of whom at least one shall be a woman.
- b. The Juvenile in conflict with law has to be produced before the JJB within 24 hours of his/her apprehension.

- c. In case the Board is not sitting, the child in conflict with law shall be produced before the single member of the Board as per the provision laid down under sub-section (2) of Section 7 of the Juvenile Justice (Care and Protection of Children) Act 2015.
- d. When a child is produced before an individual member of the Board and an order is obtained, such order shall need ratification by the Board in its next meeting.
- e. A list of Juvenile Justice Boards is placed at Annexure-A.

5. Child Welfare Committee (CWC)

- a. The Child Welfare Committee comprises of individuals who are trained and experienced on children's issues. It consists of a chairperson and six other members. A child in need of care and protection shall be produced before the Committee within twenty four hours, excluding journey time.
- b. A list of Child Welfare Committees is placed at Annexure-B.

III. POLICE ADMINISTRATIVE STRUCTURE UNDER THE JUVENILE JUSTICE ACT-2015

The Juvenile Justice (Care and Protection of Children) Act and the Rules envisage three level administrative structure to deal and supervise implementation of the Juvenile Justice Act.

1. State Nodal Unit

The first level, which is the state level, is headed by a Joint Commissioner of the Police, who is the Nodal Officer from the police side to co-ordinate and upgrade the role of the police on all issues pertaining to care and protection of children under this Act. The Delhi Police Juvenile Justice Unit headed by Joint CP/SPUWC is the Nodal Office in this regard. The Juvenile Justice Unit shall hold periodical meeting with ACP in-charge and Inspectors/SJPUs of the districts and ACP/HQ (Crime, Railways, Metro and IGI Airport) to review and monitor implementation of provisions and instructions laid down in the Act/Rule/SO etc.

2. Special Juvenile Police Unit

- a. The second level is the district level, where Special Juvenile Police Units, headed by DCP/Districts have been set up in district, Crime, Railways, Metro and IGI Airport unit of Delhi Police. DCP/Districts/units through ACP/CAW in districts & ACP/HQ in units nominated as nodal officer of the district on the issues pertaining to children in all Districts/concerned units will co-ordinate, monitor and closely supervise the working of Child Welfare Police Officers of the Districts/units. District DCsP shall hold a monthly meeting of SJPUs to review the cases related to the juvenile/children.
- b. The function of nodal ACsP in districts/units shall be to co-ordinate and upgrade the police treatment of juvenile and children. They shall ensure

that trained Child Welfare Police Officers are posted in the concerned Police Stations. DCsP of the District shall ensure that adequate numbers of trained officers are available in districts and posted in each Police Station.

3. Child Welfare Police Officer (CWPO)

- a. The third level is the police station, where Child Welfare Police Officers have been notified. Every Police Station shall designate at least two upper subordinates as Child Welfare Police Officers and only such officers shall be designated who have the aptitude, appropriate training and orientation to handle a child in conflict with law. They shall be imparted appropriate training to deal with juveniles and should be well versed with the law and procedure under Juvenile Justice (Care & Protection of Children) Model Rules 2016. The transfer and posting of the designated Child Welfare Police Officer may be within the SJPU of other police station or the district Unit.
- b. The updated list of Juvenile Welfare Officers will be sent every month to the concerned Juvenile Justice Board by District DCsP with a copy to Jt. CP/SPUWAC. Jt. CP/SPUWAC shall upload the Police Station-wise list of Child Welfare Police Officers on the website.
- c. It will be the sole responsibility of the SHO/Police Station concerned of the unit to ensure that the entire Police Station staff is briefed and is familiar with the procedure to be followed on apprehension of a child in conflict with law or a child in need of care and protection.
- d. It shall be the duty of the Juvenile or Child Welfare Police Officer to obtain the copy of age declaration done by JJB or CWC and to forward such copy to the Special Juvenile Police Unit for entry into the record and to obtain a certificate that such an entry has been done with SJPU and a copy of such certificate shall be deposited to the JJB or CWC concerned.
- e. It shall be the duty of the Juvenile or Child Welfare Police Officer to ensure that any offender at the Police Station who might be a juvenile is not treated as an adult and if he notices any such incident, he shall immediately report to the officer in charge of the Police Station concerned with intimation to the District SJPU.
- f. In case, a police officer is approached by any person alleging that someone who is a juvenile and has been treated as an adult by any officer of that Police Station, it shall be the duty of such a police officer to record the statement of such complainant and then to register a DD Entry to this effect immediately and take up the issue with the Juvenile Welfare Officer or Investigating Officer concerned or the Officer in charge concerned and cause corrective steps to be taken by such a police officer. JWO shall furnish a copy of such a DD entry to the aggrieved complainant. A report about such complaint, copy of DD entry, details of action taken or proposed to be taken shall be forwarded to the District SJPU within 24 hours of receiving such a complaint.

IV. CATEGORIES OF OFFENCES AND POLICE RESPONSE TO CHILDREN IN CONFLICT WITH LAW

- (1) The Juvenile Justice (Care and Protection of Children) Act 2015 has categorized the offences into three categories:-
 - a. Petty Offences
 - b. Serious Offences
 - c. Heinous Offences
- (2) The police response depends on the category of offence committed by the juvenile.

Petty Offences If the child is involved in petty offences (punishable with imprisonment up to 3 years). The CWPO will not apprehend the child and hand over the child to his/her parents/guardian and take an under taking to produce the child before Juvenile Justice Board (JJB) on given address, date and time. On the given date the CWPO will submit the Final Report to the JJ Board and the Board may decide the case accordingly.

Serious Offences In case of petty or serious offence (punishable with imprisonment between 3 to 7 years), FIR shall not be registered. The Final Report shall be filed before the J.J. Board at the earliest and in any case not beyond the period of two months (60 days) from the date of information to police.

Heinous Offences In cases of Heinous Offences the police shall file the final report to the Juvenile Justice Board. If the age of the child on conflict with law is above 16 years then the Board shall conduct a preliminary assessment with regard to his mental and physical capacity to commit such offence, ability to understand the consequences of the offence and the circumstances in which he allegedly committed the offence and may pass an order in accordance with the provisions of Sub-Section (3) of Section 18 of the Act. The Board may take the assistance of experienced psychologist or psycho-social workers or other experts.

- (3) The power to apprehend shall only be exercised with regard to heinous offences, unless it is in the best interest of the child.

V. REGISTRATION OF FIR, APPREHENSION AND AGE DETERMINATION OF JUVENILE

(1) Apprehension of Children in Conflict with Law (CCL)

As soon as a child alleged to be in conflict with law is apprehended by the police, such child shall be placed under the charge of SJPU or the designated Child Welfare Police Officer who shall produce the child before the Board without any loss of time but within 24 hours. If the CWPO is not available for some official reasons, the police officer who apprehended the child shall produce him before the Board. The Child once apprehended shall not be let off by the police officer apprehending him without due process.

- a. The Apprehension Memo shall be prepared in accordance with **Annexure-C**. The request for medical examination shall be in accordance with the proforma enclosed as **Annexure-D**.
- b. Personal Search Memo will be prepared in accordance with **Annexure-E**.
- c. As soon as a child alleged to be in conflict with law is apprehended by the police, the concerned police officer shall inform the parents or guardians of the child alleged to be in conflict with law about the apprehension of the child, about the address of the Board where the child will be produced and the date and time when the parents and the guardians need to be present before the Board [5 (13) of the Delhi Juvenile Justice (Care and Protection of Children) Act, 2015.]
- d. The police officer investigating the case involving the child in conflict with law shall hand over the custody of the child as soon as possible to the Child or Juvenile Welfare Officer. The Investigating Officer shall record the version of the child in conflict with law regarding the incident being investigated in the presence of his/her father/mother/guardian/fit person/Child Welfare Officer/Probation Officer in the format of **Annexure-F**.
- e. In no case, the child will be kept in the police station beyond a time he is required for the purpose of investigation. As soon as he has been dealt with, he shall be produced before the Juvenile Justice Board or kept with the SJPU or sent to the Observation Home. If the child is released by the Investigating Officer to the parent/guardian/fit person, the Investigating Officer shall take an undertaking from them in accordance with Forms-2 of Model Rules-2016, which is enclosed as **Annexure-G**.

2. Registration of case against a juvenile

Age is the most important factor while registering a FIR. The following guidelines have to be kept in mind while dealing with cases involving a child:-

- a) No FIR can be registered if the child is involved in an offence where imprisonment is less than seven years.
- b) If a FIR has already been registered before it is known that a child is involved, the same can be investigated.
- c) FIR can be registered where child is involved along with adult persons and can be investigated.
- d) FIR can be registered where there is no age proof but it seems to be a borderline case.
- e) The proof of age cannot be based on ration card, Janampatri etc.
- f) Age mentioned in the certificate of Open School cannot be depended upon in heinous cases.

- g) When an FIR is registered for offence against a child, a copy of the FIR shall be handed over to the complainant or child victim and subsequent to the completion of investigation, copy of report of investigation and other relevant documents shall be handed over to the complainant or any person authorized to act on his behalf.

3. Determination of Age

- a. In case the age of the child in conflict with law is not known or not clear, efforts should be made to ascertain the age of the child before proceeding legally. In case of doubt, the benefit of doubt shall be in favour of the child in conflict with law for treating him/her as a child. In order to collect the proof of age of the child in conflict with law, efforts should be made to collect his school certificate, municipal certificate, etc. In case of non availability of any document, age should be confirmed by a Medical Board constituted at a Govt. Hospital and not by ossification report alone. Age memo of each child shall be prepared as per **Annexure-H**.
- b. In every case, the age of the child shall be determined within a period of 30 days from the date of making of the application before the Committee and the age determination inquiry shall be conducted by the Court or the Juvenile Justice Board by seeking evidence by obtaining:
- i. The matriculation or equivalent certificates, if available.
 - ii. The date of birth certificate from school (other than a play/open school) or the matriculation or equivalent certificate, from the concerned Examination Board
 - iii. The birth certificate given by a corporation or a municipal authority or a Panchayat.
- c. In the absence of (a), the age of child shall be determined by a duly constituted medical board at a Govt. Hospital.
- d. In cases, after determining the age, if the accused is found to be an adult, immediately an FIR is to be registered and investigation is to be taken up.
- e. 'Age Memo' must be filled in case of all youthful offenders between the age of 18 years to 21 years at the time of their arrest.
- f. A copy of Age Memo mandatorily is given to the following:-
- i. The youthful offender or the CCL against his proper receipt.
 - ii. The Parents/Guardians of the youthful offender against proper receipt.
 - iii. At the time of forwarding the copy of FIR to the Ilaka Magistrate within 24 hours, IO shall be duty bound to file the preliminary 'Age Memo' along with the FIR in case arrest/apprehension is made before forwarding the FIR.

- iv. The Secretary of DSLSA while producing the youthful offender before him for the first time.
- v. The Ld. Metropolitan Magistrate while producing the youthful offender before him for the first time. Copy of the Age Memo must be attached with the application seeking his Judicial Remand.
- vi. The I/C Lock-Up while handing over the youthful offender to him. Copy of the Age Memo must be attached with the Judicial Custody Warrant issued by the Ld. Metropolitan Magistrate.

4. Steps to be followed when handling children in conflict with law

- a. Extra care should be taken to create an impression in the mind of the child that he is not under interrogation as a thief or as a liar but that an effort is being made to find out the truth in order to help him.
- b. A child in conflict with law is considered innocent until proven guilty; therefore the child should not be compelled to confess his guilt.
- c. A police officer dealing with child in conflict with law shall always be in plain clothes.
- d. The officer should not lose temper and make false promises.
- e. No bullying should be done during questioning.
- f. Display of sympathy and understanding so as to give the impression that the police officer is mainly interested in the welfare or good of the child.
- g. Enquiries from the child should be in privacy and in a comfortable environment.
- h. It should be ensured that there is no distraction when the child is being questioned.
- i. The parents and guardians may be allowed to be present during the questioning of child.
- j. As far as possible, the child should not be called to the police station but should be questioned either at his own home or some other premises which does not give the impression of a Police Station.
- k. Care should be taken not to embarrass the child. Girl child should be handled by Women Police Officers only.
- l. Statement made by a child should be verified from independent sources as there is a possibility of exaggeration and distortion of facts.

- m. Physical needs of the child, like hunger or thirst or the need to go to a toilet should be properly attended.
- n. The child should be presented before the Juvenile Justice Board as soon as possible.
- o. If the officer is not sure about the age of the concerned person, procedures for determination of age should be followed immediately.
- p. No child in conflict with law dealt with under the provision of the act should be handcuffed or fettered.
- q. No accused or suspected accused shall be brought in contact with the child and where the victim and the person in conflict with law are both children, they shall not be brought in contact with each other.

VI. CUSTODY, BAIL AND OTHER PROCEEDING OF CHILD IN CONFLICT WITH LAW

1. Custody of child

When any child is placed in the charge of a person, the person shall have control over the juvenile as the person would have, had he been a parent, and shall be responsible for the maintenance of the juvenile.

2. Bail of Juvenile

- a. When a juvenile in conflict with law, for a bailable or a non-bailable offence is apprehended, or detained, or appears, or is brought before a Board, such a child shall be released on bail with or without surety but he shall not be so released if there appears reasonable grounds for believing that the release is likely to bring him in association with any known criminal or expose him to moral, physical or psychological danger or that his release would defeat the ends of justice. While replying to a bail application it should not be mentioned that the child is hardened or notorious but specific grounds should be mentioned. Similarly, extension of judicial custody remand cannot be based on the ground of pending investigation of the case but on the ground that there exists reasonable ground for exposing him to moral, physical or psychological danger.
- b. When such a delinquent, having been arrested is not released on bail, the officer causing the arrest shall cause him to be kept only in an Observation Home for such period during the pendency of the inquiry against him, as may be specified in the order.

3. Information to Parent, Guardian or Probation Officer.

When any child in conflict with law is apprehended, the officer in-charge of the Police Station or Child or Juvenile Welfare Officer or special juvenile police unit to which the child is brought, shall inform as soon as

possible the parent or guardian of the child about his apprehension and direct him to be present at the Board before which the child will be produced. He shall also inform the Probation Officer of such a child in conflict with law to enable him to obtain information regarding the antecedents and family background of the juvenile. A daily diary entry shall be lodged mentioning the details of the person to whom the information was given.

4. No Joint Proceeding of a Juvenile and Other Criminal.

No child shall be charged with, or tried for any offence, together with a person who is not a child and who is accused of an offence under Section 223 of the Code of Criminal Procedure, 1973 (2 of 1974) or any other law for the time being in force. The Board taking cognizance of that offence shall direct separate trials of the child and the other persons.

5. Prohibition of Publication of Name etc., of Child Involved in any Proceeding Under the Act.

No report in any newspaper, magazine or audio visual media or other forms of communication regarding any inquiry against a child in conflict with law under this act shall be made disclosing the name, address or school or other particulars which may lead to the identification of the child shall be published. As per Section 74 of the Juvenile Justice (Care & Protection of Children) Act 2015, any person who contravenes this provision shall be punishable with imprisonment for a term which may extend to six months or fine which may extend to two lakh rupees or both.

6. Provisions in Respect of Juveniles in Conflict with Law who have Escaped.

Any police officer may take charge without warrant of a child in conflict with law who has escaped from a Special Home or an Observation Home or from the care of a person under whom he was placed under this Act, and such child shall be sent back to the Special Home or the Observation Home or that person, as the case may be, and no proceeding shall be instituted in respect of the child by reason of such escape but the Special Home or the Observation Home or the person may, after giving information to the Board which passed the order in respect of the child, take such measures as may be deemed necessary under the provisions of this Act. Child or Juvenile Welfare officer will be available in the Juvenile Justice Court whenever any Child is produced in the court.

VII. PROCESS IN CASE OF COGNIZABLE OFFENCES

- a. According to Rule 8 of the Delhi Juvenile Justice (Care and Protection of Children) Model Rules - 2016 in dealing with cases of children in conflict with law, matters involving simple offences, the police or the Juvenile Welfare Officer or the Child Welfare Officer from the nearest Police Station shall record information regarding the offence alleged to have been committed by the child in the Daily Diary followed by a report containing social background of the child and circumstances of apprehension and the alleged offence and forward it to the Board before the first hearing.

- b. In case a FIR has already been registered for the punishment of an offence, punishable with a sentence below seven years and after investigation it comes to notice that the offence was committed by a child, the police has to file a final report, social report, DD entry etc. before the Juvenile Justice Board.
- c. The social background of children in conflict with law shall be prepared on the basis of the background, source of income, education, social status etc. of their parents/guardians as per Form-1 of the JJ Model Rules-2016. The social background and detail of his peer group should be mentioned in the social report. The proforma for preparing the Social Report is at **Annexure-H**. This report shall be attached with the Kalandra containing details of circumstances of apprehension and the alleged offence.
- d. An inquiry of previous criminal involvement of the juvenile shall necessarily be made with the effort to find if there is any past declaration of juvenility. For this the Police should also maintain data of declaration of juvenility.
- e. The inquiry conducted in each case shall be recorded in writing and shall form a part of investigation report in each case where a child/ person claims his age up to 21 years irrespective of whether he is found to be a juvenile or an adult.

VIII. PERIOD FOR COMPLETION OF ENQUIRY/INVESTIGATION OF CASES

1. Offences Punishable up to 3 Years Imprisonment

Where a complaint is filed against the child in conflict in law below the age of 18 years for an offence punishable with imprisonment up to 3 years, enquiry/investigation shall be completed within 60 days.

2. Offences punishable between 3 to 7 years of imprisonment

Where a complaint is filed against the child in conflict in law below the age of 18 years for an offence punishable with imprisonment between 3 to 7 years, enquiry/investigation shall be completed within 60 days.

3. Offences punishable with 7 years or more Imprisonment

- a. Where a complaint is filed or First Information Report is lodged against a child below the age of 18 years for an offence punishable with imprisonment of 7 years and more, the provisions of section 167 Cr.P.C. will apply.
- b. When the offence is punishable with death, imprisonment for life or imprisonment for a term of not less than ten years, the investigation shall be completed and Final Report shall be filed within **90** days.

- c. When the investigation relates to any other offence the investigation shall be completed within sixty days.
- d. On the expiry of the set period of 90 days, or sixty days as the case may be the child in conflict with law shall be released on bail, if the Final Report is not filed within the stipulated period.

4. Role and Responsibility of the Investigating Officer and Other Officers

- (a) Every Police Officer at the time of arresting/apprehending young offenders shall be under obligation to inform the alleged offender about his right to be dealt with under the provisions of the Juvenile Justice Act, if he is below 18 years of age and counseling may be tailored to suit his age.
- (b) IO or any other police officer affecting the arrest/ apprehension shall also prepare the Age Memo. A copy of such Age Memo shall also be delivered to the alleged offender and his parents/guardians/relatives, who have been intimated about his arrest.
 - a. At the time of forwarding the copy of FIR to the Ilaka Magistrate within 24 hours, IO shall be under duty to file the preliminary age memo along with the FIR in case arrest/apprehension is made before forwarding the FIR.
 - b. On completion of age inquiry, which shall be done, preferably within one week of apprehension, the completed age memo be filed before the court concerned.
 - c. At the time of first production of an offender who is between 18 to 21 years of age as per the initial inquiry of the IO as above, before the court, IO or the Police Officer responsible for producing the offender before the court, shall produce the alleged offender, along with a copy of the FIR and age memo before the Secretary of respective District Legal Services Authority, irrespective of whether the alleged offender is being represented by a legal aid lawyer or not.
 - d. If the alleged offender claims to be a juvenile and age documents to support such claims are not readily available and it is not possible for IO to obtain such documents within 24 hours of arrest. Accused shall be produced before Juvenile Justice Board.
 - e. At the time of the first production of the offender before the Court or JJB, it shall be the duty of IO to ensure that parents or relatives of such an offender are duly informed about (1) date, (2) time and (3) particulars of the court of such production and a copy of such intimation shall be produced before the Court at the time of first production.

5. Role and Responsibilities of SHO and ACP

- a. It shall be the duty of the Officer-in-Charge (SHO) of the Police Station to ensure that police officers of his or her police station have taken all measures to ensure that proper inquiry or investigation on the point of age has been carried out and that all the required formalities, procedure have been carried out and required documents have been prepared in this regard. The concerned ACP shall ensure compliance of these instructions.
- b. Officers-in-Charge shall also ensure that a notice board, prominently visible, in Hindi, Urdu and English language informing that person below the age of 18 years are governed under the provisions of JJ Act and cannot be kept in police lock-up and jails and are not to be taken to the Adult Criminal Courts. Such Notice Boards shall also contain the names and contact details of Juvenile Welfare Officers, Probation Officers and Legal Aid Lawyers of DSLSA. The concerned ACP shall ensure compliance of these instructions.
- c. SHO shall ensure that all Police Inquiry Reports (PIRs) are invariably sent to Prosecution Branch for scrutiny and submitted before the Ld. JJ Board after removing all shortcomings, if any, pointed out by it. The concerned ACP shall not forward the PIRs in a routine and casual manner. They shall ensure that PIRs are complete in all respect and the relevant documents are duly attached to it.

6. Role and Responsibilities of District DCP

- a. In case any person approaches the DCP, Incharge of a district, with a complaint that Police is not taking notice of juvenility of any offender and is refusing to take on record the documents being provided to suggest juvenility and instead is treating a child as an adult, it shall be the duty of DCP concerned to do an immediate inquiry into such complaint. Such inquiry shall be completed within 24 hours of receiving such a complaint and if the complaint has merit and truth, the DCP concerned shall make orders to the concerned police officers to immediately take corrective steps and shall also initiate disciplinary action against the erring police officials.
- b. In cases where any action is taken against an erring police officer, a quarterly report of the same containing the nature and reasons of such lapses and details of action taken shall be furnished by the DCP concerned to the concerned JJB having jurisdiction over that district along with a copy to the Nodal Head of Special Juvenile Police Unit for their record and intimation.
- c. DCP shall, during the regular monthly meeting with all the SHOs & Inspectors (Investigation), shall brief them about their responsibilities, any new judgment or order from JJB's and Courts, any practice, direction etc. and shall ensure that their subordinate police officers don't show children as adults, take all necessary steps to verify the age of the accused persons and are in overall compliance with provisions of JJ Act & Rules.

- d. On being intimated by the JJBs about any lapse having been committed on investigation of age, the DCP concerned shall institute an inquiry and take such action as may be required or appropriate. An action taken report shall be submitted to the JJB by the DCP concerned within a month from the receipt of such intimation.
- e. DCP shall ensure that all the Child or Juvenile Welfare Officers are periodically trained and well versed with the provisions of the Act, rules and instructions.
- f. DCP shall ensure that sufficient number of Child or Juvenile Welfare Officers are nominated and will ensure officers handling children are well versed with the provisions of the Act, Rules and instructions on the subject and also ensure that only such officers are deputed to attend the proceedings at Juvenile Justice Boards or Juvenile Welfare Boards.
- g. DCP shall ensure that in case the officer attending the proceedings at Juvenile Justice Board or Juvenile Welfare Board is not the nominated officer, then the officer shall carry necessary certificates issued by ACP/SHO concerned that the officer is well versed with the provisions of the Act and rules on the subject.
- h. DCP and ACP during their visits to Police Stations will check the records/ registers including files relating to children to ensure the Act, Rules and instructions on the subject are being meticulously complied with.

IX. POLICE RESPONSE TO CHILDREN IN NEED OF CARE AND PROTECTION

Whenever a child in need of care and protection is found in the jurisdiction of any police station, the following action should be taken:-

- a. Police officers should interact with the child in a sympathetic and sensitive manner and not discriminate against a child on the basis of its social status or gender. Non discriminatory practice should always be followed by the police while dealing with the most vulnerable sections of society like the children.
- b. Every child's right to express his view freely in all manner affecting his interest shall be fully respected through every stage in the process of juvenile justice.
- c. The child should be produced before the Child Welfare Police Officer/SHO.
- d. An entry in the Daily Diary should be made giving particulars of the child, and the reasons for suspecting that he is such a child.
- e. The Police Control Room must be informed at once.

- f. A report on the prescribed proforma must be sent to the Missing Persons Squad through District Missing Persons Unit as per Annexure-J.
 - g. If the parent is known, an enquiry should be initiated to know the social background of such a child.
 - h. If the parent is not known or is not in a position to exercise any control over the child, the child should be produced before the CWC and as per the order of the CWC he may be sent to the Children Home/Shelter Home. Under no circumstances should the child be kept in the police station.
 - i. While dealing with a girl child, special care needs to be taken. Such girls accompanied by women police officer should be produced before the Child Welfare Committee after medical check-up with a request for sending her to Children's Home.
-
- k. In case a child is mentally challenged, he or she should be got medically examined by a Govt. Hospital and produced before CWC. He or she should be sent to an institution for mentally challenged as per the order of the CWC, after confirming whether a missing report has already been lodged at the District Missing Persons Units (DMPU/Missing Persons Squad (MPS). Such child details shall be uploaded on ZIPNET.
 - l. Police should understand that MLC/medical examination is scientific evidence and it plays a crucial role in the conviction of the accused, especially in cases of sexual abuse, physical abuse, bonded labour, child labour and mentally challenged children. But it should not be done for all children as all children may not require such an examination.
-
- m. A copy of MLC should be provided to parents and guardians.
 - n. The parents whom the child trusts should be allowed to be present during the medical examination.
 - o. Ensure no photography/questioning/video filming by the media. In case he comes across such activities undertaken by the media, the same should be reported to higher authorities, such as court etc immediately.
 - p. Child victims shall not be kept in the police station overnight on any pretext.
 - q. Police officer should ensure that the medical examination is done with the necessary sensitivity by professionals and wherever possible should be accompanied by a social worker. Insensitive questioning of the child should be avoided.
 - r. No Police officer should ask leading questions to the child that may distort the information.

- s. No Police officer should be involved in tutoring a child or coaching him to provide particular answers.
- t. No Police officer should make false promises or tell lies to the child.
- u. No Police Officer should blame the child.
- v. A child in need of care and protection shall be produced before the committee within 24 hours, excluding journey time along with the Circumstances Report as per the provisions of JJ Act, 2015.
- w. Police should facilitate involvement of local NGOs and interaction of NGO/social worker with the child.
- x. Police should be aware of a child's immediate basic needs like food, clothes, footwear etc and arrange it as soon as possible on receiving a child either brought by someone or rescued by police.
- y. The Child's right to privacy and confidentiality shall be protected by all means and through all the stages of the proceedings and given due care and protection.
- z. Child Welfare Committee is the final authority to dispose of the cases involving a question of care, protection, development, rehabilitation of children as well as to ensure fulfillment of their basic needs and protection of their human rights.
- aa. Where it is found that the parents/guardians of the child are not acting in the best interest of their children, in cases like child trafficking, child sexual abuse, abandonment, the police should ensure the safety and protection of the child by exercising discretion when it comes to providing information about the child to the parents.

2. Offences against Children in Need of Care and Protection

- a. If someone is having actual charge of or control over the child, assaults, abandons, exposes or willfully neglects the child or causes or procures him to be assaulted, abandoned, exposed or neglected in any manner likely to cause such child unnecessary mental or physical suffering, he will be punished u/s 75 of Juvenile Justice (Care and Protection of Children) Act, 2015).
- b. Employment or use of any child for the purpose of begging is an offence u/s 76 of the Juvenile Justice (Care and Protection of Children) Act, 2015). The offence is cognizable, non bailable and punishable.
- c. Gives or causes to be given to any child, intoxicating liquor in public place or any narcotic drug or psychotropic substance, except upon the order of a duly qualified medical practitioner or in the case of sickness is punishable

u/s 77 of the Juvenile Justice (Care and Protection of Children) Act, 2015.
The offence is cognizable and non bailable.

- d. If Someone uses a child for vending, peddling carrying, supplying or smuggling any intoxicating liquor, narcotics drug or psychotropic substance, is punishable u/s 78 of the Juvenile Justice (Care and Protection of Children) Act, 2015. The offence is cognizable and non bailable.
- e. Ostensibly procures a child for the purpose of any employment and withholds the earnings of the child or uses such earnings for his own purpose is punishable u/s 79 of the Juvenile Justice (Care and Protection of Children) Act, 2015.
- f. Any person or organization offers or gives or receives any orphan, abandoned or surrender child, for the purpose of adaption without following the provisions as prescribed in the Act is punishable u/s 80 of the Juvenile Justice (Care and Protection of Children) Act, 2015.
- g. Any person sells or buys a child for any purpose is punishable u/s 81 of the Juvenile Justice (Care and Protection of Children) Act, 2015.
- h. Any person in-charge of or employed in a child care institution, who subjects a child to corporal punishment with the aim of disciplining the child, punishable u/s 82 of the Juvenile Justice (Care and Protection of Children) Act, 2015.
- i. In case, where the management of such institution does not cooperate with any inquiry or comply with the orders of the Committee or the Board or court or State Government, the person in-charge of the management of the institution is punishable u/s 82 (3) of the Juvenile Justice (Care and Protection of Children) Act, 2015.
- j. Any non-State, self-styled militant group or outfit declared as such by the Central Government, if recruits or uses any child for any purpose, is punishable u/s 83 of the Juvenile Justice (Care and Protection of Children) Act, 2015.
- k. Any adult or an adult group uses children for illegal activities either individually or as a gang shall be liable for punishment u/s 83 (2) of the Juvenile Justice (Care and Protection of Children) Act, 2015.
- l. The provisions of sections 359 to 369 (offences related to kidnapping, abduction, slavery and forced labour) of the Indian Penal Code, shall mutatis mutandis apply to a child or a minor who is under the age of eighteen years and all the provisions shall be construed accordingly u/s 84 of the Juvenile Justice (Care and Protection of Children) Act, 2015.
- m. Anyone commits any of the offences mentioned in Chapter IX of the Juvenile Justice (Care and Protection of Children) Act, 2015 on any child who is

disabled as so certified by a medical practitioner, then, such person is punishable u/s 85 of the Juvenile Justice (Care and Protection of Children) Act, 2015.

- n. If someone abets any offence under this Act, if the act abetted is committed in consequence of the abetment is punishable u/s 87 of the Juvenile Justice (Care and Protection of Children) Act, 2015.

X. PROCEDURE IN CASES OF OFFENCES AGAINST CHILDREN

In case an offence against child in need of care and protection comes to the notice of the police, the Child Welfare Police Officer/SHO shall handle the case and the following action would be taken:-

- a. A detailed entry shall be made in the Daily Diary Register.
- b. Any child in need of care and protection may be produced before the Child Welfare Committee by Child or Juvenile Welfare Officer or Special Juvenile Police Unit or a designated Police Officer for being placed in safe custody or otherwise. A child in need of care and protection may be produced before an individual member when the committee is not in session.
- c. Expeditious enquiry of the case as required u/s 36 of the Juvenile Justice (Care and Protection of Children) Act, 2015 shall be conducted and the same shall be completed within a period of fifteen days so as to enable the Child Welfare Committee to pass final order within four months of first production of the child.
- d. The Special Police Juvenile Unit shall take serious cognizance of the adult perpetrators of the crime against children and see to it that they are apprehended without delay and booked under the appropriate provisions of the law and for this purpose the district level units shall maintain liaison with other units of police station. The action against the perpetrator of the crime should be taken speedily under section 86 of the Delhi Juvenile Justice (Care and Protection of Children) Model Rules, 2016.
- e. NGOs/Resident Welfare Associations and Civil Society shall be associated in the investigation of Children in conflict with law to know the social background details of the child. Similarly, help of a psychologist may preferably be taken in every case of a child in conflict with law before producing the final report to the Juvenile Justice Board.
- f. Any police officer found guilty after due enquiry, of torturing a child mentally or physically, shall be liable to be removed from service, besides being prosecuted for the offence [34 of The Delhi Juvenile Justice (Care and Protection of Children) Act, 2015].

XI. ROLE AND RESPONSIBILITIES OF THE S.J.P.U TO PREVENT JUVENILE DELINQUENCY AND VIOLATION OF CHILD RIGHTS

- a. Nodal Head of Special Juvenile Police Unit shall cause quarterly (once in three months) inspection of all the police stations through an official not below the rank of ACP in order to check that all the police stations have put in place the required setup and all the obligations required.
- b. A report shall be prepared by such ACP of such visits documenting the best practices or shortcomings noticed at the police stations and shall be submitted to the Nodal Head of SJPU within 10 days of such a visit.
- c. Nodal Head of SJPU shall make a report on half yearly basis and shall submit it to the Commissioner of Police with his recommendations. A copy shall also be submitted to Juvenile Justice Committee of Hon'ble Delhi High Court.
- d. District Level units of SJPU shall on a regular basis monitor the functioning of Police Stations of that district *vis-a-vis* implementation of JJ Act and Rules and directions of this Hon'ble Court and shall provide necessary guidance and training to the police.
- e. The Special Juvenile Police Unit shall have a list of:
 - i. the Board and Child Welfare Committee in its due jurisdiction, their place of sitting, hours of sitting, names and contact details of Principal Magistrate and members of the Board, names and contact details of Chairperson and members of the Committee and the procedures to be followed before the Board and the Committee; and
 - ii. contact details of the Child Care Institutions and fit facilities in its due jurisdiction.
- f. The names and contact details of the Special Juvenile Police Unit or Child Welfare Police Officer shall be placed at a conspicuous part at the police stations, Child Care Institutions, Committees, Boards and the Children's Courts.
- g. The Special Juvenile Police Unit shall work in close co-ordination with the District Child Protection Unit, the Board and the Committee in the matters concerning the welfare of children within its jurisdiction.
- h. The Special Juvenile Police Unit shall coordinate with the District Legal Services Authority to provide legal aid to children.

XII. MISCELLANEOUS

All Police Stations shall have 2 or 3 officers; one of them shall be a female, designated as Child or Juvenile Welfare Officer who have undergone training in

handling children in conflict with law and children in need of Care and Protection. All cases in which children in need of care & protection as well as children in conflict with law are involved should be handled by them.

- a. All Police Stations should have at least 2 copies of the "Juvenile Justice (Care and Protection of Children) Act 2015", Juvenile Justice (Care and Protection of Children) Model Rules, 2016 rules and SO No. 68/2017 one each for the SHO and the other for the use by child or Juvenile Welfare Officers.
- b. The names, addresses and telephone numbers of the following should be available with Duty Officers of all the Police Stations;
 - i. Members of the Child Welfare Committee
 - ii. Observation Homes
 - iii. Juvenile Justice Board
 - iv. Probation Officers
- c. A list of all designated Child Welfare Officers in a district and members of Special Juvenile Police unit with contact details shall be prominently displayed on board in every Police Station.
- d. In no case a child is to be kept in a Police Station lock-up or sent to jail. The child in conflict with law shall be produced before the Juvenile Justice Board and not before the regular criminal court.
- e. The Police or the Juvenile/Child Welfare Officer from the Special Juvenile Police Unit, shall be responsible for the safety and provision of food and other basic amenities to the children apprehended or kept under their charge during the period such children are with them.
- f. A Separate **Pink Color File** cover for each incident involving a child in conflict with law shall be prepared with following columns as check list on the top:
 - i. Sl. No./Year (as in the Register)
 - ii. Daily Diary No.
 - iii. Date
 - iv. Time
 - v. Details of receipt of complaint whether in person/telephone/through PCR
 - vi. Complainant details
 - vii. Crime head of offence
 - viii. Name of Child or Juvenile Welfare Officer handling complaint
 - ix. Name of the child in conflict with law
 - x. Details of Age proof
 - xi. Social report
 - xii. Education Standard
 - xiii. Details (including telephone no.) of parents/guardian to whom the information was given about the child

- xiv. Details (including telephone no.) of Probation Officers to whom the information was given about the child
- xv. Date and time of producing the child before the board and gist of order of board
- xvi. Whether Child or Juvenile Welfare Officer accompanied child in conflict with law for producing before the Board
- xvii. Conveyance used
- xviii. Next date of hearing, if any.
- xix. FIR No., Date and Under Section

g. DCP, ACP and SHO shall personally ensure compliance of this Standing Order.

h. There is an urgent need to sensitize policemen to restrain themselves from inflicting corporal punishment on the children on streets in any manner. The practice of policemen beating/slapping street children/rag-pickers must stop forthwith, if still being practiced.

i. All expenses incurred on handling the children in conflict with law or neglected child for their care, food and transport etc. shall be claimed under the head "Investigation Expenses" as per prescribed procedures and Head of Office shall reimburse the same as per instructions on the subject. The Investigating Officer will ensure that the child is not taken in marked vehicles of the police.

XIII. SUPERSESSION CLAUSE

This standing order supersedes Standing Order No.68 issued vide No.4381-4530/Record Branch/PHQ, dated 19.10.2012 and all previous circulars/instructions on this subject.


(Amulya Patnaik)
 COMMISSIONER OF POLICE,
 DELHI.

OB No. 23 /RB/PHQ dated 17-11-2017

No. 3102-3251 /Record Branch/PHQ dated Delhi, the 17-11-2017.

Copy to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint/Addl. Commissioners of Police, Delhi.
3. Dy. Commissioners of Police, Districts/Units including FRRO, Railways, Metro, IGIA & Spl. Cell, SPUWAC, Delhi/New Delhi.
4. SO to CP and LA to CP, Delhi.
5. All ACsP/SDPOs and SHOs in Delhi.
6. All ACsP/Inspectors in PHQ, including Reader to CP, Delhi.
7. I/C Library, PHQ, Delhi with 5 spare copies.
8. IT Centre/PHQ and Guard file.

ANNEXURE-A
(SO No. 68/2017)

LIST OF JUVENILE JUSTICE BOARDS

S.NO	NAME	ADDRESS	PHONE NUMBER
01.	Juvenile Justice Board-I	Sewa Kutir Complex, Kingsway Camp, Delhi-110009	011-27651439
02.	Juvenile Justice Boards-II	PRAYAS Observation Home for Boys (I), Behind Feroz Shah Kotla Stadium, Delhi Gate, New Delhi-110002	011-23724054
03.	Juvenile Justice Board-III	Sewa Kutir Complex, Kingsway Camp, Delhi-110009	011-27651439

ANNEXURE-B

(SO No. 68/2017)

LIST OF CHILD WELFARE COMMITTEES

S.N.	NAME	ADDRESS	PHONE NUMBER
1.	Child Welfare Committee-I	Nirmal Chhaya Complex, Jail Road, Delhi.	011-28520452 cwcnc@gmail.com ranchnasril6@gmail.com
2.	Child Welfare Committee-II	Kasturba Niketan Complex, Lajpat Nagar, Delhi.	011-29819329 011-29813688 cwcsouthdelhi@gmail.com
3.	Child Welfare Committee-III	Sewa Kutir Complex, Kingsway Camp, Delhi.	011-27651473, 011- 27652575 cwcsewakutirdelhi9@gmail.com
4.	Child Welfare Committee-IV	NPS School for Deaf & Dumb, Near Delhi Police Aptt., Mayur Vihar, Phase-I, Delhi	011-22755527 cwcmayurvihar@gmail.com
5.	Child Welfare Committee-V	Sanskar Ashram, Dilshad Garden, Delhi.	011-22572224 cwcsanskarashram@gmail.com
6.	Child Welfare Committee-VI	Asha Kiran Complex, Avantika, Rohini, Delhi.	011-27515910 cwcakavantika@gmail.com
7.	Child Welfare Committee-VII	Nirmal Chhaya Complex, Jail Road, Delhi.	011-28522023 cwcsouthwest@gmail.com
8.	Child Welfare Committee-VIII	B-Block, PWD Barack Near Gurudwara Kalkaji Delhi(Near kudedaan)	011-26211201 cwcsoutheastdelhi@gmail.com

ANNEXURE-C
(SO No. 68/2017)

Apprehension Memo

FIR No./D.D. No.....

U/S.....Date.....

P.S.....District.....

1.Name of the child with alias (if any)

2.Present address of the child

3.Permanent address of the child

4.FIR/DD No. & Section (s) of Law

5.Place of apprehension

6.Date & Time of apprehension

7.Name, address & telephone number of the person who informed about apprehension

8.Relation of the person with juvenile

9.Name, Rank and No. of the officer, Making the apprehension

10.Name, Rank and No. of the, Juvenile Welfare Officer

Witnesses with Address 1._____

2._____

3._____

Signature by Patent/ guardian/ Probation Officer/Social Welfare

Signature of Juvenile Welfare Officer

PS.....Delhi/New Delhi.....

Note: One copy to be delivered to the member of the Child's family.

ANNEXURE-D
(SO No. 68/2017)

Request For Medical Examination

Case FIR/ D.D. No.....
Date.....U/s.....
P.S.....
Distt.....Delhi

To,

The Chief Medical Officer

.....
.....
.....Delhi

Subject: Request for Medical Examination

Sir,

With due respect I am sending Master/ Ms _____ S/O, D/o, W/o
Sh. _____ R/o _____ Age _____. In the
custody/ protection of:

1. Const _____ No. _____

2. W/Const. _____ No. _____

It is therefore, requested that the child/patient may kindly be medically
examined and opinion regarding his/ her injuries/ ailment may be furnished.

Thanking You,

Name of JWO _____

P.S _____

Distt _____ Delhi/New Delhi

Date _____

ANNEXURE-E

(SO No. 68/2017)

Personal Search Memo

Case FIR/ D.D. No.....

Date.....U/s.....

P.S.....

Distt.....Delhi

In the presence of the following witnesses the personal search of

Master/Ms.....

S/O,D/o,Sh

R/o.....

Telephone No.

was conducted as per law under the provisions of Sec.51 of Cr.P.C. and following articles have been recovered from his/her possession and the same have been taken into the police possession, through this memo.

- 1.....
- 2.....
- 3.....
- 4.....
- 5.....
- 6.....

Witness (with name & address):-

1).....

.....

2).....

.....

SD

Juvenile or Child Welfare Officer

P.S.....

Date.....

ANNEXURE-F
(SO No. 68/2017)

VERSION OF CHILD IN CONFLICT WITH LAW

(To be recorded in presence of his father/mother/guardian/fit person/probation officer)

Proceedings conducted

From.....

To.....

Signature of father/mother/guardian/ fit person/ probation officer:-

Signature of IO/JWO:

PS: _____

Distt: _____

Date: _____

Follow up action recommended especially in case allegations of mistreatment/ abuse etc are made out against any person on basis of version of CCL.

Signature of IO/JWO

ANNEXURE-G
(SO No. 68/2017)

UNDERTAKING

Undertaking to be given by parent/guardian/fit person in whose custody juvenile/child in conflict with law (JCL)/Child in need of care and protection (CNCP) is released by a police officer.

Case No.....of.....20.....

WHEREAS

.....
.....

Has been found to be in conflict with law/in need of care and protection, and has been placed under the care and supervision of

(Name).....

(Address).....

Subject to following conditions, that:-

1.The child shall be produced before the Juvenile Justice Board (JJB) / Child Welfare Committee (CWC) as and when required by me.

2.The Child shall remain under my supervision.

3.The child shall reside at

.....and address of child shall not be changed without information to the JWO/JJB/CWC.

4.The child shall go to school regularly.

5.The child shall be permitted to make endeavor to earn an honest livelihood.

6.I shall arrange for the proper care, education and welfare of the child.

7.The child shall not be allowed to associate with undesirable characters and shall be prevented from coming in conflict with law again.

8.The child shall be prevented from taking Narcotic Drug or Psychotropic Substance of any other intoxicants.

9. That if his/her conduct requires further supervision or care and protection, I shall at once inform the Board.

10. That if the child goes out of my charge or control, I shall immediately inform the Board.

This.....day of.....20

Signature of parents/guardian/fit person

Counter signed by JWO

PS..... Delhi/New
Delhi

ANNEXURE-H
(SO No. 68/2017)

AGE MEMO

(To be filled out in the case of youthful offenders) *As per the directions of
Hon'ble High Court of Delhi in Writ Petition (Civil) No. 8889 of 2011*

FIR No. _____ Year _____ Dated: _____ PS _____

District _____

1.Name of the arrestee		
2.Name of father & Mother	Father	
	Mother	
3. Date of Birth/Age as stated by the Arrestee		
4. Name of available documentary proof showing the age and date of birth of the arrestee (If available)		
5. Age as stated by the person who is informed of the arrest (to be done only in case when arrestee does not know his/her age)		
6. Age as observed by the arresting officer (to be entered only when the age cannot be stated by the arrestee and no one is available to give information about the age)		
7. Name of school and class last attended and year of leaving		
8. Has the arrestee been dealt with under the provision of Juvenile Justice Act, 2015? (Relevant column to be ticked by the IO as per the answer given by arrestee or his family members/ relatives)	YES	Year:
	NO	
	Do Not Remember	Probably yes
9. History of prior inquiry in Juvenile Justice Board (This column needs to be filled in as per the verification done from the Nodal Special Juvenile Police Unit)	Name of Juvenile Justice Board: F.I.R. No. Date of Offence: Police Station: U/S	

	Whether copy of age declaration available with arrestee or his parents/relatives/next of kin: Age as declared by the JJB: District: Age at the time of present offence as per the age declaration done by JJB:
--	--

Witnesses:

1.

Name & Number of JWO to whom information of this arrest has been given:	
Date:	
Time:	

Name of Investigation Officer or any other police officer who prepared this age memo:	
Rank & No.:	
Police Station:	
District:	
Date & Time of Preparation of Age Memo:	
Signature of the police officer who prepared this age memo:	

Receipt from Arrestee

I have received the copy of this age memo on date.....time.....place.

(Name & Signature of arrestee)

Receipt from Parents/Family

I have received the copy of this age memo on
date.....time.....place.

**(Name & Signature of
Father/Mother/**

**Wife/Family Member/Relatives
of arrestee)**

A copy of this age memo has to be supplied to the arrestee, his/her parents or relatives, District Legal Services Authority and to be produced before the Court at time of first production of arrestee by the Investigation Officer.

ANNEXURE-I
(SO No. 68/2017)

SOCIAL BACKGROUND REPORT

Under Juvenile Justice (Care and Protection of Children) Model Rules, 2016
[Rules 8 (1), 8 (5)]

FIR/DD No

U/Sections

Police Station

Date & Time

Name of I.O.

Name of CWPO

1. PIS No. Telephone No.

2. Name

3. Father/Mother/Guardian's name

4. Age/ Date of birth

5. Address

6. Religion

(i) Hindu (OC/ BC/ SC/ ST)

(ii) Muslim/ Christian/ Other (pl. specify)

7. Whether the child is differently-abled:

(i) Hearing Impairment

(ii) Speech Impairment

(iii) Physically disabled

(iv) Mentally disabled

(v) Others (please specify)

8. Family Details:

S. No. (1)	Name and Relationship (2)	Age (3)	Sex (4)	Education (5)	Occupation (6)	Income (7)	Health status (8)	History of Mental Illness (if any) (9)	Addictions (if any) (10)

9. Reasons for leaving home

10. Whether there is a history of involvement of family members in offences, if any

11. Habits of the child

A

B

Yes

No

i) Smoking

i) Watching TV/movies

ii) Alcohol consumption

ii) Playing indoor/ outdoor games

iii) Drug use (specify)

iii) Reading books

iv) Gambling

iv)

Drawing/painting/acting/singing

v) Begging

v) Any other

vi) Any other

12. Employment Details, if any.....

13. Details of income utilization:

(i) Sent to family to meet family need

Yes

No

(ii) Used by self for:

a) For dress materials Yes/No

b) For gambling Yes/No

c) For alcohol Yes/No

d) For drug Yes/No

e) For smoking Yes/No

f) Savings Yes/No

14. The details of education of the child:

(i) Illiterate

(ii) Studied up to V Standard

(iii) Studied above V Standard but below VIII Standard

(iv) Studied above VIII Standard but below X Standard

(v) Studied above X Standard

15. The reason for leaving School

(i) Failure in the class last studied

(ii) Lack of interest in the school activities

(iii) Indifferent attitude of the teachers

- (iv) Peer group influence
- (v) To earn and support the family
- (vi) Sudden demise of parents
- (vii) Bullying in school
- (vii) Rigid school atmosphere
- (viii) Absenteeism followed by running away from school
- (ix) No age appropriate school nearby
- (x) Abuse in school
- (xi) Humiliation in school
- (xii) Corporal punishment
- (xiii) Medium of instruction
- (xiv) Others (pl. specify)

16. The details of the school in which studied last:

- (i) Corporation/Municipal/Panchayat
- (ii) Government/SC Welfare School/BC Welfare School
- (iii) Private management
- (iv) School under NCLP

17. Vocational training, if any

18. Majority of the friends are

- (i) Educated
- (ii) Illiterate
- (iii) The same age group
- (iv) Older in age
- (v) Younger in age
- (vi) Same sex
- (vii) Opposite sex
- (viii) Addicts
- (ix) With criminal background

19. Whether the child has been subject to any form of abuse : **Yes/No**

S.No.	Type of Abuse	Remarks
1.	Verbal abuse – parents/siblings/ employers/others (pl. specify)	
2.	Physical abuse(pl. specify)	
3.	Sexual abuse parents/siblings/ Employers/others	

	(pl. specify)	
4.	Others (pl. specify)	

20. Whether the child is a victim of any offence:

21. Whether the child is used by any gangs or adults or group of adults or has been used for drug peddling:

☐ Yes

☐ No

22. Reason for alleged offence such as parental neglect or over protection, peer group influence etc.

23. Circumstances in which the child was apprehended

.....

.....

.....

24. Details of articles recovered from the child:

.....

25. Alleged role of the child in the offence

.....

.....

26. Suggestions of Child Welfare Police Officer

.....

.....

Signed by
Child Welfare Police Officer

ANNEXURE - J
(SO No. 68/2017)

PROFORMA ABOUT RECOVERY OF CHILD IN NEED OF CARE AND PROTECTION

State		Photo
District		
Police Station		
FIR Number		
DD Date		
Serial Number		
Place of Recovery		
Reporting Date		
Name of Child		
Guardian Name (If known)		
Guardian Occupation (If known)		
Year Of Birth		
Religion		
Sex		
Address (if known)		
Height		
Built		
Complexion		
Face		
Hair		
Eyes		
Mark of Identification		
Dress Upper		
Dress Upper Color		
Dress Lower		
Dress Lower Color		
Details of Footwear		
Any belongings of the child, if found with him		
Mental or psychological status of the child		

Details of person (with his phone number) who found the Child	
Rank, Name & Phone number of the IO or he Child Welfare Police Officer	

(Signature of the IO/CWPO)

Police Station: _____

District: _____